JHARKHAND

SORENS IN A MINEFIELD

By Amitabh Srivastava

Jharkhand chief minister Hemant Soren has some real fire-fighting to do in the coming days if he wants to continue in his post. Everything seems to be going wrong at once. On one flank looms an Election Commission notice asking him why he should not be disqualified for holding a mining lease from the government (an office of profit offence). On another, the Enforcement Directorate (ED) on May 11 arrested state mining secretary Pooja Singhal, the officer he had handpicked in August 2021 to lead the department. The EC has given time till May 20 to Soren—who also holds the mining portfolio—to explain why he owns the lease, a violation of Section 9A of the Representation of the People Act, 1951.

The apparent coincidence—ED conducting raids on Singhal on May 6, just three days after the EC served Soren notice—has also spawned conspiracy theories in capital Ranchi that the central agencies are again at work to destabilise a duly elected government of the Opposition. The Soren-led Jharkhand Mukti Morcha (JMM) alliance government, with the Congress and Rashtriya Janata Dal as partners, had come to power after defeating the BJP in the December 2019 state election.

Soren has described the raids as "empty threats" and accused the BJP-led central government of trying to browbeat political opponents using state machinery. Jharkhand BJP president Deepak Prakash countered this, saying it was a weird defence of the corrupt, considering the ED had seized over Rs 18 crore in cash from the house of chartered accountant Suman Kumar, who is allegedly linked to Singhal.

Singhal, a 2000 batch IAS officer, has been arrested in an old case of money-laundering, and not in connection with Soren's current crisis. But as mining secretary, she must have known about Soren's mining lease. Also, a number of serving mining officers are under the radar (in connection with the recovered cash), so the ED has possibly widened the investigation's limits.

Meanwhile, the conspiracy theory gets new legs every day. The ED has not officially spoken about Singhal's ongoing custodial interrogation, but BJP MP Nishikant Dubey's updates via tweets referring to WhatsApp chats linking the 'Raja to the recovered money' has got everyone in the loop. Rumours that the IAS officer and her husband were going to turn government approvers have also got Soren camp followers on the edge. JMM party workers even staged a demonstration outside the state BJP headquarters in Ranchi, alleging the saffron party was intentionally trying to malign the CM. On May 15, the ED questioned former JMM treasurer Ravi Jaiswal for alleged money-laundering.

Apart from Hemant Soren, the EC on May 4 issued a similar notice to his younger brother and MLA Basant Soren. He is a director of two companies, Chandra Stone Works and Grands



HOT SEAT
CM Hemant Soren at a function at Governor's House, Ranchi

ON SHAKY GROUND

- Soren cannot deny that he obtained a mining lease for himself while holding the mining portfolio in the government
- Governor Ramesh Bais will have the final say on the disqualification of the Soren brothers, subject to EC's advice
- Though the JMM-led alliance government has an absolute majority, picking an acceptable successor—in case of disqualification—will be tricky
- Precedent exists. In 2015, two Uttar Pradesh MLAs were disqualified after they were indicted by the Lok Ayukta for bagging government contracts

CM SOREN'S DEFENCE

- The CM gave up the lease in Feb; no mining or excavation was done, so there is no question of profit-making
- Having a mining lease does not entail disqualification as a member of the Legislative Assembly under any law
- Mining lease was just a "renewal", and the leased land was declared in various affidavits to the EC
- The BJP is using central agencies to destabilise the Jharkhand government